

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

DEFENDANTS' MOTION FOR PRELIMINARY INJUNCTION

Case No: 2024-CV-005678 | Filed: March 28, 2024

BASIS FOR INJUNCTIVE RELIEF

Defendants move for a preliminary injunction restraining Plaintiff Jane Smith from: (a) disclosing Global Tech Inc. trade secrets to TechRival Corp. or any third party; (b) accessing Global Tech Inc. computer systems; and (c) soliciting Global Tech Inc. employees or clients during the pendency of this litigation.

FOUR-FACTOR ANALYSIS

1. Likelihood of Success: Defendants possess direct evidence — email logs dated November 18-20, 2023 — showing Plaintiff transmitted proprietary datasets to an external email address associated with TechRival Corp.
2. Irreparable Harm: Trade secret disclosure cannot be remedied by monetary damages. Each day of continued disclosure compounds harm to competitive position.
3. Balance of Hardships: An injunction merely requires Plaintiff to honor existing contractual obligations. No legitimate business interest is restrained.
4. Public Interest: Enforcement of trade secret protections serves the public interest in protecting legitimate business investment in proprietary technology.

Hearing requested: April 5, 2024. Bond proposed: \$50,000.

Dated: March 28, 2024 | Skadden Arps LLP